

Master Cloud SaaS Services Agreement

Section 1.0: Scope of Licensed Cloud Services

Vendor grants Customer a non-exclusive, worldwide, revocable license to access the Enterprise Analytics Platform during the Subscription Term. Customer user seats are capped at the contracted tier specified in Order Form Schedule A.

Section 2.0: Service Level Agreement and Uptime Guarantees

Vendor commits to a monthly service availability of 99.9% uptime, excluding scheduled maintenance windows announced at least 72 hours in advance. If monthly uptime drops below 99.5%, Customer is entitled to a 10% service credit; if uptime drops below 99.0%, Customer receives a 25% service credit on the subsequent billing cycle.

Section 3.0: Limitation of Direct and Consequential Liability

Except for breaches of confidentiality or gross negligence, each party's aggregate liability arising under this Agreement is strictly capped at the total amount of fees paid by Customer during the twelve (12) months preceding the incident. Neither party shall be liable for indirect, punitive, or consequential damages.

Section 4.0: Termination for Cause and Notice Period

Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision and fails to cure such breach within thirty (30) calendar days of receiving detailed written notice.